

SENATE No. 3084

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to amending the charter of the city known as the town of Randolph regarding filling of vacancies, running for multiple offices, term of office for Stetson Trustees and three-month prohibition on work for the town after service in elected office.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No. 3084

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 3084) of William J. Driscoll, Jr. (by vote of the town) for legislation to amend the charter of the city known as the town of Randolph regarding filling of vacancies, running for multiple offices, term of office for Stetson Trustees and three-month prohibition on work for the town after service in elected office. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to amending the charter of the city known as the town of Randolph regarding filling of vacancies, running for multiple offices, term of office for Stetson Trustees and three-month prohibition on work for the town after service in elected office.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of article II of the charter of the city known as the town of
2 Randolph, which is on file in the office of the archivist of the commonwealth, as provided in
3 section 12 of chapter 43B of the General Laws, is hereby amended by striking out the following
4 sentence: “No councillor shall hold any compensated appointed town office or employment until
5 1 year following the date on which his council service has terminated.”

6 The following shall be inserted in place thereof: “No councillor shall hold any
7 compensated appointed town office or employment until three months following the date on
8 which his council service has terminated.”

9 SECTION 2. Section 3 of article II of said charter is hereby further amended by inserting
10 the following at the end of the section: “No person shall simultaneously run for more than one
11 elected municipal office in any election.”

12 SECTION 3. Section 10 of article II of said charter is hereby amended by striking out
13 subsections (a), (b) and (c) and inserting in place thereof the following subsection (a):

14 (a) Councillor-at-Large and District Councillor - Whenever a vacancy shall occur in the
15 office of councillor-at-large or in the office of district councillor the vacancy shall be filled by
16 vote of the remaining members of the town council at a town council meeting. Persons elected to
17 fill a vacancy must be eligible and willing to serve. Persons elected by the town council to fill a
18 vacancy shall serve only until the next regular election or, if so decided, a special election, at
19 which time the vacancy shall be filled by the voters. After an election, the vacancy shall be filled
20 by the person who receives the highest number of votes for the office in which there is a vacancy
21 and who is not then serving as a member of the town council. The person chosen to fill such
22 vacancy by the town council shall forthwith be certified and sworn into the office of councilor-
23 at-large or district councillor by the town clerk and shall serve for the remainder of the unexpired
24 term until the vacancy is filled via an election. After an election, the town clerk shall certify the
25 chosen candidate to the office of councillor-at-large or district councillor to serve for the balance
26 of the then unexpired term, in addition to any regular term for which such person may have been
27 elected. Persons serving as town councillors under this section shall not be entitled to have the
28 words “candidate for re-election” printed against their names on the election ballot.

29 SECTION 4. Subsection (f) of section 1 of article IV of said charter is hereby amended
30 by striking out the following sentence: “No school committee member shall hold any

31 compensated employment within the town until 1 year following the date on which his service as
32 a member of the school committee has terminated.”

33 The following shall be inserted in place thereof: “No school committee member shall
34 hold any compensated appointed office or employment with the town until three months
35 following the date on which his service as a member of the school committee has terminated.”

36 SECTION 5. Section 1 of article IV of said charter is hereby amended by inserting the
37 following subsection (h):

38 (h) Filling of Vacancies - Whenever a vacancy shall occur on the school committee in a
39 position held by one of the six elected members, the town council and the remaining members of
40 the school committee shall meet in joint session and elect a suitable person to fill the vacancy for
41 the remainder of the unexpired term. The council president or his designee shall preside at the
42 joint session. Persons elected to fill a vacancy must be eligible and willing to serve. Persons
43 elected by the joint session to fill a vacancy shall serve only until the next regular election or, if
44 so decided, a special election, at which time the vacancy shall be filled by the voters. After an
45 election, the vacancy shall be filled by the person who receives the highest number of votes for
46 the office of school committee member and who is not then serving as a member of the school
47 committee. The person chosen to fill such vacancy by the joint session shall forthwith be
48 certified and sworn into the office of member of the school committee by the Town Clerk and
49 shall serve for the remainder of the unexpired term until the vacancy is filled via an election.
50 After an election, the town clerk shall certify the chosen candidate to the office to serve for the
51 balance of the then unexpired term, in addition to any regular term for which such person may
52 have been elected. Persons serving as members of the school committee under this section shall

not be entitled to have the words “candidate for re-election” printed against their names on the election ballot.

Whenever a vacancy shall occur on the school committee in the position held by the town council representative to the school committee, the vacancy shall be filled through the same process that is used to annually appoint the town council representative to the school committee.

SECTION 6. Subsection (a) of section 2 of article IV of said charter is hereby amended by striking out the following: “, so arranged that the term of 1 member shall expire at the first biannual election and the term of 2 members shall expire at the next biennial election and continuing thereafter”.

SECTION 7. Section 2 of article IV of said charter is hereby amended by inserting the following subsection (d):

(d) Conflict of Interest - Unless such service may otherwise be authorized by the charter, no member of the board of trustees of the Stetson School Fund shall hold any other office or position for which a salary or other emolument is payable from the town treasury. No person shall simultaneously hold more than 1 elective town office. No member of the board of trustees of the Stetson School Fund shall hold any compensated appointed office or employment with the town until three months following the date on which his service as a member of the board of trustees of the Stetson School Fund has terminated.

SECTION 8. Section 2 of article IV of said charter is hereby further amended by inserting the following subsection (e):

(e) Filling of Vacancies - Whenever a vacancy shall occur on the board of trustees of the Stetson School Fund the town council and the remaining members of the board of trustees of the Stetson School Fund shall meet in joint session and elect a suitable person to fill the vacancy for the remainder of the unexpired term. The council president or his designee shall preside at the joint session. Persons elected to fill a vacancy must be eligible and willing to serve. Persons elected by the joint session to fill a vacancy shall serve only until the next regular election or, if so decided, a special election, at which time the vacancy shall be filled by the voters. After an election, the vacancy shall be filled by the person who receives the highest number of votes for the office of board of trustees of the Stetson School Fund and who is not then serving as a member of that board. The person chosen to fill such vacancy by the joint session shall forthwith be certified and sworn into the office of member of the board of trustees of the Stetson School Fund by the town clerk and shall serve for the remainder of the unexpired term until the vacancy is filled via an election. After an election, the town clerk shall certify the chosen candidate to the office to serve for the balance of the then unexpired term, in addition to any regular term for which such person may have been elected. Persons serving as members of the board of trustees of the Stetson School Fund under this section shall not be entitled to have the words "candidate for re-election" printed against their names on the election ballot.

SECTION 9. Sections 1 through 8, inclusive, shall take effect upon the passage of this Act.